

July 26 2010

Ed Smith
CLERK OF THE SUPREME COURT
STATE OF MONTANA

Robert L. Rose #38060
Montana State Prison
700 Conley Lake Road
Deer Lodge, MT 59722

Appellant pro se

IN THE SUPREME COURT OF THE STATE OF MONTANA

ROBERT L. ROSE

Cause No.

~~PA 10-0362~~

Appellant,

v.

KELLI SATHER

MOTION AND AFFIDAVIT IN SUPPORT
TO PROCEED ON APPEAL WITHOUT
PAYMENT OF FILING FEE

Appellee.

I, the Appellant in the above entitled cause and hereby move this honorable court to proceed without the filing fee in this cause, and I submit this affidavit in support of my motion.

I, Robert L. Rose, being first duly sworn, depose and say that I am the Appellant in the above entitled cause; that in support of my application to proceed on appeal without being required to pay the filing fee, I state that because of my financial condition I am unable to pay the filing fee; that I believe I am entitled to redress; and that the issues which I desire to present on appeal are the following:

- 1.] Whether the District Court abused its discretion by finding that all of Appellants claims are in need of expert testimony/

- 2.] Whether the District Court Abused its discretion in in denying Appellant's Request to Modify the Rule 16 Scheduling Order
- 3.] Whether the District Courts DISMISSAL WITH PREJUDICE is proper while Appellants Post-Conviction Claims are not yet decided concerning ineffective assistance of the Defendant in thsi case.

I further swear that the response which I have made to the questions and instructions below relateing to my inability to pay the cost of prosecuting this appeal are true.

1. Are you presently employed? NO.
2. If the answer is no, state the date of last employment And amount of Salary and wages per month you received.
Nov. 2007. (\$1,000 month.)

Pursuant to Rule 5(2), Affiant ATTACHES the
Prisons Accounting Statement.

Measurement of the absolute energy and energy spread of the ESRF electron beam using undulator radiation

Eric Tarazona and P. Elleaume
ESRF, BP 220, 38043 Grenoble Cedex, France

Two simple methods of characterization of the energy and energy spread of the electron beam have been developed at the ESRF. Both are based on the analysis of the x-ray spectrum from an undulator.

The first allows the absolute energy of the electrons to be determined. It is based on the dependence between the harmonics' wavelengths and the electron beam energy. The x-ray beam is monochromatized at 21 keV by a silicon crystal in backscattering geometry. By adjusting the magnetic gap, one makes the undulator third harmonic coincide with the energy selected by the crystal. The electron beam energy is deduced from the gap value and the knowledge of the undulator period and photon wavelength. The main errors come from the uncertainties regarding the undulator parameters (magnetic field and period). The effects of the uncertainties in the magnetic field are minimized by working at low field ($K=0.37$). The accuracy currently obtained is better than 10^{-3} .

The energy spread measurement is performed by a second method which is based on the change in the shape of the harmonics' profile with energy spread. It is deduced from the measured ratio between the height of the seventh harmonic peak at 29 keV and that of the secondary maximum. The measured low current energy spread is $1.1 \times 10^{-3} \pm 20\%$. It increases with the single bunch current due to turbulent bunch lengthening.



Fermilab at work



Scheduling Meeting of April 28, 2009

Days Worked since last Recordable Injury = 6

Includes Employees & subcontractors

	FY06	FY07	FY08	FY09	Goal
TRC Cases	29	31	12	13	<12
DART Cases	7	12	3	7	<5

For every 10 days worked without an OSHA recordable injury, two employees will be selected at random to receive a Fermilab fleece pullover.

Recent winners

04/17/09	Hiep M Le (AD)	Michael A Gerardi (AD)
04/03/09	Shin-Shan Yu (PD)	Naomi T Williams (WR)
03/24/09	Dianne M Engram (WR)	Oleg Prokofiev (TD)

Injuries/Vehicle Accidents Reported

04/20/2009 – 04/27/2009

Injuries:

Division	Category	Case Date	Date Entered	Reportable?	Rx	Medical		ESH	
						ODD	LDD	ODD	LDD
AD	FNAL	04/21/2009	04/21/2009	Y		0	6	0	5

Medical Comments: After changing HEPA filters at the top of the clean room (from a lift), employee felt pain in the right scapula (shoulder blade) area.

ESH Comments: Changing the HEPA filters required that the employee lift each of the 5 fan/filter assemblies (weight = 50 lb. each) off of the clean room roof and then re-install the assemblies after the filters were replaced. No suitable mechanical lifting device was available to hoist the assemblies. Plans are being developed to install monorail-mounted hoists or similar equipment above the clean room to facilitate removal of the assemblies in the future. First aid treatment only. Medical limitations restrict the employee's ability to perform some routine duties, so case is DART.

Fermilab Leading & Lagging Indicators
(Employees only)
 From 10/1/08 to Present

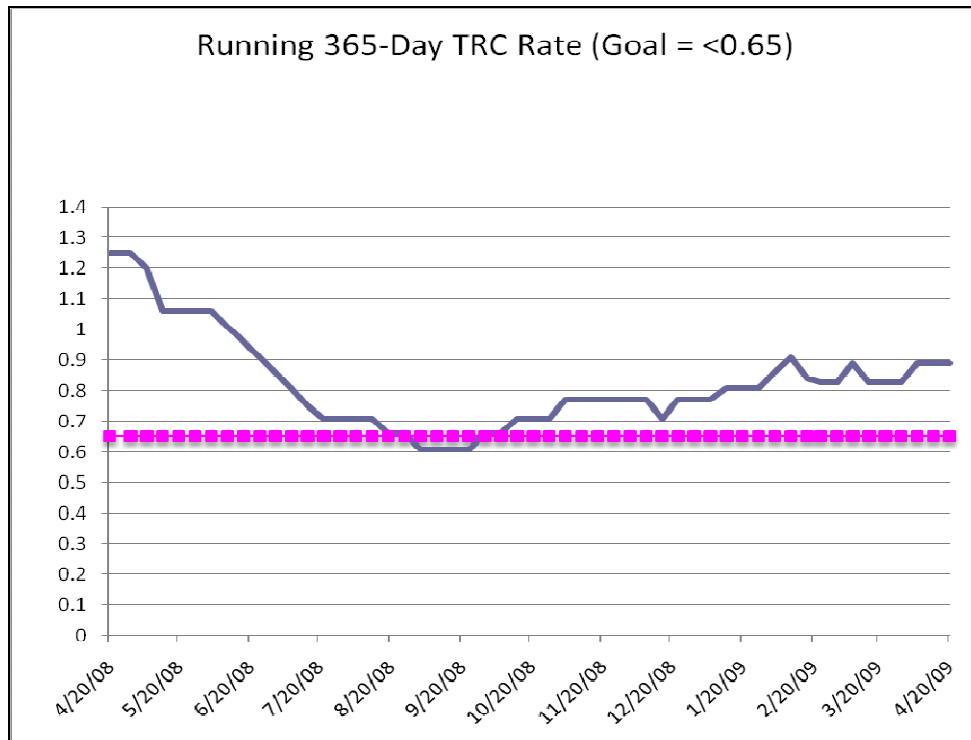
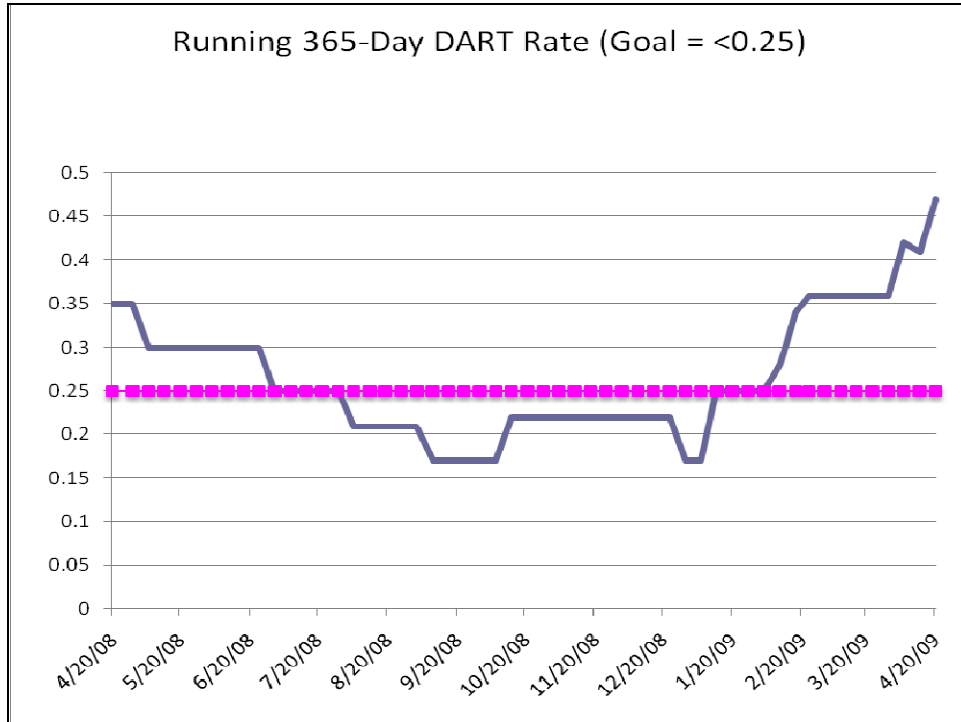
Outstanding
 Excellent
 Good
 Marginal
 Unsatisfactory

	% Required ES&H Courses	% Current ITNAs	TRC Cases	TRC Rate	DART Cases	DART Rate
AD	98.1%	95.7%	3	1.22	2	0.81
APC	98.8%	97.7%	0	0.00	0	0.00
BS	97.2%	93.7%	3	4.47	2	2.98
CD	96.8%	98.7%	0	0.00	0	0.00
CMS	98.7%	92.3%	0	0.00	0	0.00
DI	96.4%	93.9%	0	0.00	0	0.00
ES	97.3%	100.0%	0	0.00	0	0.00
FCPA	97.7%	100.0%	0	0.00	0	0.00
FE	97.8%	99.1%	4	7.09	2	3.54
FI	99.6%	100.0%	0	0.00	0	0.00
PD	95.1%	91.4%	2	0.94	1	0.47
TD	96.8%	91.8%	1	0.89	0	0.00
WR	97.3%	94.9%	0	0.00	0	0.00
Fermilab	97.1%	94.9%	13	1.35	7	0.73

Required ES&H Courses	90 - 100%	85 - 89.9%	80 - 84.9%	75 - 79.9%	0 - 74.9%
Total Recordable Case Rate	0 - .74	.75 - 1.29	1.3 - 1.94	1.95 - 2.59	≥2.6
DART Rate	0 - .34	.35 - .59	.6 - .84	.85 - 1.09	≥1.1
Current ITNAs	90 - 100%	85 - 89.9%	80 - 84.9%	75 - 79.9%	0 - 74.9%

Annualized Injury Rate Trends

Rate = (200,000) X (Number of Cases / Hours worked)



PUBLIC SAFETY NEWS



Bob Taft, Governor

Kenneth L. Morckel, Director

FEBRUARY 2003

INSIDE THIS ISSUE

- Performance Ratings of Deputy Registrars Lead to Fee Increase
- Patrol Cars Cruise to New Color
- ESA Awards for Fourth Quarter
- Baby Boomers are Aging
- Quality Quote
- PS NEWS Roving Reporter
- Salute to Ohio—Ohio's Presidents
- Calling All Trivia Buffs
- Who is it?

Celebrate Ohio! Ohio to Celebrate 200th Birthday March 1

The state that gave the world flight, eight Presidents, the first person to walk on the moon, and the nation's top 2002 college football team turns 200 on March 1.

On that day, the Ohio Bicentennial Commission kicks off an eight-month celebration with a day of activities to celebrate Statehood Day. The day's events will take place in historic Chillicothe, the site of the state capital when Ohio entered the Union in 1803.

Ohio will celebrate its 200th Birthday with a variety of activities, including a prayer breakfast, a black-tie ball, a special joint session of the Ohio General Assembly, the re-creation of an 1803 village, the first day issuance of a U.S. Postal Service stamp recognizing Ohio statehood, and the re-opening of Adena, the home of Thomas Worthington, recognized as the Father of Ohio Statehood.

Statehood Day is just the start of a months-long celebration that will reach every corner of Ohio. Other activities will include a Tall Ships festival on the Lake Erie coastline in July, a re-enactment of a wagon train cross the state in June and July, a riverboat festival on the Ohio River in October, and a month-long celebration of the centennial of flight in Dayton in July. The celebration will also include two days of fireworks, and entertainment in Columbus July 3-4.

These activities will happen on top of other projects that the Ohio Bicentennial Commission has undertaken over the past several years. One ongoing project will see 250-pound bronze Bicentennial Bells cast in 41 Ohio Counties. This project began in 2001 as a partnership between the Bicentennial Commission and the Verdin Company of Cincinnati, Ohio's oldest family-owned manufacturer. When completed, the project will have cast a personalized bell in each of Ohio's 88 counties during a two-day, out-in-the-open event.

Another enormously popular program has seen the Bicentennial Commission paint its logo on a barn in each Ohio County. The barn paintings have become extremely popular, with hundreds of Ohioans criss-crossing the state to visit and photograph all 88 barns.

In addition, the Ohio Department of Public Safety (ODPS) began distributing the bicentennial plate in October 2001. The ODPS sold 1,384,013 bicentennial plates in 2001. In 2002, there were 3,629, 611 plates sold. More than 5 million plates are now on the road advertising the bicentennial year.

Community-based bicentennial celebrations will take place in the form of 40 Commission-funded Legacy Projects, which include antique car rallies, exhibits, living history performances and lecture series in different parts around the state.

A full list of all bicentennial activities, including a monthly Calendar of Events, is available at the Ohio Bicentennial Commission Web site, www.ohio200.com. Look for Signature Events.



If you have upcoming events or information that you would like to see in the next issue of *Public Safety News*, send it to Lynne McBee, Office of Communications, Shipley Bldg., 4th floor, or via e-mail at lmcbec@dps.state.oh.us

IT'S ABOUT SAFETY



Editor: Lynne McBee Layout & Design: Kim Cox/Timothy Bates

Performance Ratings of Deputy Registrars Lead to Fee Increase

Effective January 1, 2003, the deputy registrar fee increased from \$2.75 to \$3.25. A provision of the State's general revenue budget bill (HB 94), provided for an annual review of deputy registrars for the purpose of determining fees which will be paid to transact driver license and vehicle registration functions on behalf of the Bureau of Motor Vehicles (BMV). The fee is collected to reimburse deputy registrars for their expenses in performing driver and vehicle registration services on behalf of the state. Deputy registrars and their employees are not state employees.

The 50-cent increase is the result of the deputy registrars receiving a statewide satisfaction rating of 90-percent or better on surveys conducted by The Ohio State University. The study focused on the delivery of services to Ohioans by the 215 deputy registrar agencies. The BMV's Registrar stated that the results of the study are encouraging and confirm that the BMV is moving in the right direction with their customer focused approach. According to the survey, 90 percent of respondents reported a favorable opinion regarding the performance of the BMV and 93 percent indicated that the Deputy Registrar Agency they visited met or exceeded their expectations of quality customer care.

The deputy registrar fee is used in transactions dealing with vehicle registrations, out-of-state inspections, driver licenses, state identification cards and endorsement issuances. The fee increase will affect transactions completed through the deputy registrars, mail, phone and Internet.

PATROL CARS CRUISE TO A NEW COLOR

The color is white. The reason is visibility. On February 14, 2003, the Ohio State Highway Patrol (OSHP) premiered its new Patrol cruiser at the annual awards banquet in Columbus. The Trooper of the Year, Sgt. Matthew R. Crow, received the first one and each district will be given one new car. Gradually, the other charcoal gray cars will be phased out, usually when a car reaches 85,000 miles, which is approximately 33 months of service. It will take several years to change over the 1,200 marked Patrol cars.

The current dark color tends to blend in with roads during the day and can't be seen at night. The death of two troopers in less than three years is a factor in the switch. Trooper Robert Perez was completing paperwork on a routine traffic stop on the Ohio Turnpike in Sandusky when a speeding car hit the cruiser from behind and killed him on May 15, 2000.

On November 5, 2001, Trooper Frank Vazquez was approaching a car on Interstate 270 in Columbus when a sport utility vehicle hit him, the cruiser and the car he stopped. Vazquez died the next day.

Patrol cruisers were white from 1970 until 1981. They became silver in 1983 to celebrate the 50th anniversary of the founding of the Patrol. In 1992, the cars became charcoal.

The decision to change colors was made last September, after the first Patrol Car Committee meeting. Committee members met one evening to observe a patrol car demonstration in a parking lot on the state fairground. Headed by Major Robert Cassidy, the other members included Lt. Col. Michael W. Finamore, Capt. Lisa Taylor, Lt. Jim Wernecke, Lt. Brian Charles, Lt. Rick Fambro, Lt. C. Lance Mathess, MCES Milan Orbovich, Sgt. Kay Perkins, Sgt. Walter Davis, Sgt. Dennis Lee, Fleet Mgr. Joe Price, Sgt. John Rinko, Tpr. Kenneth Metz, and Tpr. Mark Neff.

The consensus of the committee was that the white Crown Victoria provided far superior visibility at night when compared to the current issue gray patrol car. The new white cruisers will continue to move the Patrol in the direction of providing troopers with the safest, most reliable, and best equipment available.



ESA Awards for Fourth Quarter

The Excellence in Service (ESA) Awards ceremony was held on January 8, 2003, in the Shipley Building Atrium. The following employees received awards:



Management: Debbie Bell,
Titles



Law Enforcement: George Pitre,
Investigative Unit



Office Support: Dustyn Fox,
Information Services

Toll-Free Number and E-mail Address

Ohioans can now address their Bureau of Motor Vehicles (BMV) concerns at a toll-free number and an e-mail address. Any comments, suggestions or recommendations in reference to the BMV can be phoned in or e-mailed at:

1-866-238-2888 or E-mailed to **AdviseBMV@dps.state.oh.us**

Ohioans who wish to discuss an individual case must continue to call 614/752-7500.

Baby Boomers Are Aging

According to a study that appeared in the August issue of the *American Journal of Public Health*, by the year 2030, about 7 million baby boomers age 85 and older will have stopped driving and will be forced to rely on other forms of transportation.

With this dependency comes a host of issues for baby boomer families and society in general. The study says that more than 600,000 Americans stop driving each year. This number is expected to rise sharply as baby boomers begin to retire.

Seniors stop driving because of poor eyesight, memory problems or other health-related problems that make it difficult for them to get behind the wheel, according to Jeff Runge, the administrator for the National Highway Traffic Safety Administration (NHTSA).

It becomes harder for older people to rely on bus transportation because they may have trouble walking to the bus stop. Some communities have begun offering services that provide curb-to-curb service; but in many places, seniors have to rely on family and friends.

Runge suggests that adult children take a hard look at the situation before a crisis occurs and says it is often a person's doctor that can assess the situation and help tell the older person they are no longer fit to drive.



QUALITY QUOTE

"I've learned that it's those small, daily happenings that make life so spectacular." Andy Rooney



The PSNEWS Roving Reporter

Q What is your most favorite romantic movie?

A "The Quiet Man starring John Wayne and Maureen O'Hara." Nancy Boyd, EMA

A "It is the *Bridges of Madison County!*" Sue Rance-Locke, OSHP

A "I'd have to say right off the top of my head my all time favorite romantic movie would be *Sleepless in Seattle* starring Meg Ryan and Tom Hanks." Tammy Bonner, ACF

A "My favorite romantic movie of all time is *Notting Hill* with Hugh Grant and Julia Roberts. It's a funny love story, and the soundtrack is awesome. My (now) husband asked me out on a date to see this movie when we were dating; and during the movie, he said he wondered if he could spend the rest of his life with me...I guess I know the answer!" Sabrina Straight, ACF

A "My favorite romantic movie is *Terms of Endearment* with Debra Winger, Shirley MacLaine and Jack Nicholson." Louise Davidson, Training

A "Titanic." Diane Walton, EMS

A "An Officer and A Gentleman. Close second: *Pretty Woman*." Barbara Hamilton, BMV

Salute to Ohio

Proud to be a Buckeye

Ohio's Presidents (Source: Ohio Division of Travel and Tourism)

Amazing as it may sound, more U.S. presidents were born or reared in Ohio than in any other state in the union. Boasting a total of eight, Ohio has earned the nickname, "The Mother of Presidents." They were:

William Henry Harrison-9th President, North Bend, OH
Ulysses Simpson Grant-18th President, Point Pleasant, OH
Rutherford Birchard Hayes-19th President, Delaware, OH
James Abram Garfield-20th President, Orange OH
Benjamin Harrison-23rd President, North Bend, OH
William McKinley-25th President, Niles, OH
William Howard Taft-27th President, Cincinnati, OH
Warren Gamaliel Harding-29th President, Blooming Grove, OH

CALLING ALL TRIVIA BUFFS

What television show won the "People's Choice" Award for best drama for 2002?



E-mail your answer to: lmcbec@dps.state.oh.us

The Automobile Division changed to the Bureau of Motor Vehicles in 1925.

These people knew the answer:

Dustyn Fox and Peggy Barber
Carol Spencer

Who is it?

This person works in the Financial Responsibility Section of the BMV.



Send your guesses to lmcbec@dps.state.oh.us

In January's issue, the person is Rick Fulton. He works in the Governor's Highway Safety Office (GHSO) on the fourth floor.

These people knew the answer:

Dustyn Fox, Melony Simpson, Rhonda Meggitt, Donna Dehl, Tamara Larrick and Geri Berry.